**RFI Questions & Answers:**

1. *The initial award (April 14, 2021) for this business was described as an estimated $64,261,652.00 firm fixed-price contract. When the latest option period of performance was confirmed (March 19, 2026), the award stated the cumulative value of the contract to be $58,387,000.00. We request the Government clarify how the award is made when requiring possible usage of a Call-Out Tow, and thus how an Offer needs to be presented to the Government when the RFP is eventually posted in the future. Is the value of the Call-Out Tow included in the Award, whether the Call-Out Tow is utilized 5% or 95% of the time? Or is the posted contract amount only for the usage of the 3 x Tows being utilized every day, with any/all Call-Out Tow usage billed separately for the Government's account? Specifically, does the awarded amount of $12,448,000 for the current option period (modification to the firm-fixed-price contract) for performance from April 1, 2026 through March 31, 2027 include 365 days of 'potential usage' of the Call-Out Tow, whether the government actually uses it or not, or is that only the value of the award for the 3 Firm Tows, and any/all actual usage of the Call-Out Tow shall be billed separately and paid to Contractor by the Government, in addition to the stated award value?*

Response: This acquisition is currently in the market research stage, so the final pricing structure is not yet finalized. The Government's current plan is to establish a Firm-Fixed-Price (FFP) rate for the recurring monthly towing services. Any on-call or surge towing needs that exceed this baseline requirement would be priced separately. The complete and final pricing structure will be detailed in the forthcoming Request for Proposal (RFP).

2. Can the government confirm approximate utilization rate of the call-out tow in the most recent contract period?

Response: The 1st on-call tow is being utilized full-time. The 2nd on-call tow is not being utilized.

3. Can the government confirm average utilization rate of the call-out tow in the full contract period from commencement through today (or most recent available date)?

Response: Base year- 1st- 100% 2nd- 50%

OY1- 1st- 100% 2nd- 33%

OY2- 1st- 100% 2nd- 42%

OY3- 1st- 100% 2nd- 0%

4. Can the government provide guidance as to the approximate expected utilization this year (final contract year) and in future years?

Response: For OY4, we expect to utilize the 1st on-call tow full-time, and do not expect to utilize the 2nd on-call tow based on current mission requirements.

5. *We would like to verify that the Government is seeking equipment quantity of two or three dedicated tows, each consisting of one inland towing vessel and two inland barges, along with one on-call tow consisting of one inland towing vessel and two inland barges. The Performance Work*

*Statement (2.2.2.1.), which is excerpted above, states that three tows are required, and access to an additional on-call tank barge tow is also required, but the RFI Worksheet (3.a.i.) suggests that it's three tows in total, with two dedicated tows and one on-call tow.*

Response: This requirement is being written as three full-time, and one on-call.

6. Inland tank barges do not have water stripping systems separate from the cargo tank stripping systems. Historically, we have worked with shipyards and used the cargo tank stripping systems to remove water from cargo tanks. Our understanding is that most of the inland industry is similarly situated without separate water stripping systems. Is a separate water stripping system absolutely required, or will the Government allow existing cargo tank stripping systems to also serve as the water stripping systems?

Response: There is NO WATER stripping System on the Barges. If further stripping other than cargo stripping, the Barge Company normally uses Barge cleaning services located in Mobile Al, New Orleans, or Port Allen La.

7. *Traditionally, barges which are not in dedicated bunkering service are not equipped with boom cranes for lifting hoses. Is this contract calling for "bunker barges," or can standard inland barges be used to "lighter" to these vessels to make fuel deliveries? Additionally, we would like to confirm that any vessel we discharge to will have the capability to use the ship's own crane/boom to lift the hoses to/from the tank barges for transfer operations to the ship.*

Response: We are discharging to shore tanks only, no vessels. The boom/crane is located on site at the discharge location and does not need to be provided by the barge. Standard Inland Barges are currently used at Loading and Discharge docks. On occasion when lightering to a sea going barge, the Larger Vessel normally is equipped with crane to lift hoses so they can be connected.

8. *We would like to verify whether it's the responsibility of the Barge Owner, as the contractor, to source an inspector. Typically, Barge Owners do not hire Inspectors at the load nor discharge ports to gauge barges, as that responsibility typically falls to the customer. Is Barge Owners are required to do so under this contract, will that cost be a rebillable item which the government will re-pay to Owner upon proof of such Inspection costs? Or will the cost be for the Barge Owner/Contractor's account?*

Response: Third Party Surveyors are hired by the loading dock fuel provider and the receiving dock fuel receiver. Barge personnel are custodians of the loaded product and are responsible for accounting for product quantities loaded and discharged either by manually gauging the barges or witnessing other surveyor's gauges.

9. *In our experience, Barge Owners typically carry Hull and Machinery, Protection and Indemnity, and Pollution Insurance, with the actual cargo owner placing the all-risk cargo insurance. The transportation provider typically does not have an insurable interest in the cargo and as such is not required to place all-risk cargo insurance, and we understand that to be an industry-wide position. Please let us know if the Government has any flexibility on the requirement to place all-risk cargo insurance and, relatedly, the cargo liability scheme in general.*

Response: While we understand the commercial norms you've described, the government's requirements and the allocation of risk for this specific effort are defined within the draft Performance Work Statement (PWS) provided with the RFI.

Your inquiry touches on two key areas: liability for cargo and the requirement to place all-risk cargo insurance. The draft PWS for this recompete addresses both points directly:

1. **Contractor Liability and Insurable Interest:**

The PWS explicitly assigns liability for the government-owned cargo to the contractor while it is in your care, custody, and control.

- **PWS Section 3.2.1, "Loss or Contamination Liability,"** states that "The contractor assumes **full liability** for and agrees to **reimburse the Government** for the actual loss or contamination to the cargo it receives for transportation..."
- This contractual assumption of liability creates a direct financial risk for the contractor, which establishes a clear **insurable interest** in the cargo.

2. **Mandatory Insurance Requirement:**

The PWS makes the purchase of cargo insurance a direct contractual obligation.

- **PWS Section 3.10.1, "Cargo Insurance,"** states, "The contractor **shall purchase and maintain cargo insurance** at its own expense... in an amount at least equal to the value of the cargo transported."

Given these explicit requirements in the draft PWS, the government's position is that the responsibility for obtaining cargo insurance rests with the contractor. This is a deliberate risk-management decision and is considered a mandatory requirement to protect government assets and ensure a clear path for recovery in the event of a loss.

As the purpose of this RFI is to conduct market research, we welcome further information that can help the government understand the full impact of this requirement. If your firm views this requirement as a significant cost driver or challenge, please provide a response to the following questions:

1. What are the primary challenges and cost drivers associated with obtaining cargo insurance to cover the liability established in PWS Section 3.2?
2. Can you recommend any alternative liability structures or insurance arrangements that would provide the government with a comparable level of financial protection against loss or damage? Please describe the pros and cons of any suggested alternatives.

Your detailed answers to these questions will help inform the government's final acquisition strategy.

10. *We would like to confirm whether the terminal formerly known as Goldline, Jennings, LA located at 11105 Campbell Wells Rd, Jennings, LA (currently P3 Energy Solutions) remains a potential load port. The SPRR Swing Bridge located just south of the terminal on the navigation route has a horizontal clearance of 52 feet, while standard inland 25,000-30,000 barrel tank barges are 54 feet*

*wide. As a result, a specially constructed barge with a width of 50 feet or less would be required to transit this route, which is an extremely uncommon size in the industry.*

Response: We have not loaded at this location since before 2015. The Government will evaluate if this location needs to be included prior to the RFP posting.